

6. PEOPLE v. \$8,600.00 U.S. CURRENCY, 26CV0532**(A) Claimant's Motion for Return of Property****(B) People's Petition for Forfeiture**

Before the court is (1) claimant Stuart Miller's ("claimant") motion for return of property pursuant to Health and Safety Code section 11488.4, subdivision (h)(1); and (2) the People's petition for forfeiture pursuant to Health and Safety Code section 11488.4, subdivision (j)(5)(C).

1. Background

On July 12, 2025, agents of the South Lake Tahoe Police Department seized \$8,600.00 cash (the "Property") from claimant's apartment in South Lake Tahoe, California, in connection with an arrest of claimant under Health and Safety Code sections 11366 and 11378.

Thereafter, the People initiated an administrative forfeiture of the Property. (Health & Saf. Code, § 11488.4, subd. (j).) On February 13, 2026, in response to the administrative proceedings, claimant filed a verified claim opposing forfeiture. On March 25, 2026, the People filed a petition for forfeiture pursuant to Health and Safety Code section 11488.4, subdivision (j)(5)(C).

Claimant has also filed two separate motions for return of property under Health and Safety Code section 11488.4, subdivision (h)(1): the first motion was filed on February 20, 2026, and the second motion was filed on April 7, 2026. On April 8, 2026, the People filed an opposition to claimant's motion, including a copy of the transcript of claimant's preliminary hearing in the related criminal case, *People v. Miller* (El Dorado Super. Ct., Case No. 25CR1785). On April 16, 2026, claimant submitted a copy of his work paystubs from Stateline Builders.

2. Preliminary Hearing in Case No. 25CR1785

On October 27, 2025, a preliminary hearing was held in *People v. Miller*.

Officer Jessica Neumann testified that, during a Post Release Community Supervision (“PRCS”) search of claimant’s apartment on July 12, 2025, she found large quantities of methamphetamine, baggies, a scale, and a cell phone with messages showing indicia of drug sales. Officer Neumann also located \$8,600.00 cash in the top drawer of the nightstand in claimant’s bedroom. (Opp., Ex. A at 10:1–8.) The cash included denominations of \$100.00 and \$50.00 bills. (Opp., Ex. A 10:9–10.) Based on the large amount of methamphetamine she discovered in the bedroom, Officer Neumann testified “the amount of cash associated with that could be indicative of methamphetamine sales.” (Opp., Ex. A at 10:14–17.)

Officer Neumann advised claimant of his *Miranda* rights and claimant agreed to speak with her. Claimant indicated he worked for a contractor and “was paid via pay checks, which he had the stubs for inside of his residence.” (Opp., Ex. A at 17:18–21.) Officer Neumann reviewed the paystubs, which were located in the same nightstand drawer where the cash was found, but testified she did not recall the amount on the paystubs. (Opp., Ex. A at 17:22–26, 18:14–18.)

Officer Neumann asked claimant how much money he made as a carpenter but claimant did not tell Officer Neumann how much he was paid. (Opp., Ex. A at 25:12–16.) Officer Neumann did not ask claimant why he had so much cash when he was paid via paychecks. (Opp., Ex. A at 25:20–22.)

Jake Herminghaus, then a Detective with the El Dorado County Sheriff’s Department,³ testified that he omitted Officer Neumann’s observation of \$8,600.00 cash from his (Detective Herminghaus’s) report “because it had pay stubs involved with it.” (Opp., Ex. A at 38:23–26.) Mr. Herminghaus explained, “the cash itself could be an indication of sales, especially when it’s ... found in number denominations of tens, twenties, fifties, one hundreds. And in this case, it’s fifties and one hundreds. But it’s

³ Mr. Herminghaus is now an Investigator with the El Dorado County District Attorney’s Office.

also coupled with the paycheck stubs, which were documented. So, I didn't have an opinion if that was directly connected." (Opp., Ex. A at 38:26–39:4.)

The prosecutor followed up on the issue of the cash with Mr. Herminghaus, asking, "when you factor in the cash in with all the other evidence, does that further support your opinion that the methamphetamine here was possessed for purposes of sale?" (Opp., Ex. A at 42:1–4.) Mr. Herminghaus answered, "It does, but I would want to deduct that amount of money to the paycheck and the amount of cash that was there, and the opinion on the extra cash that was there." (Opp., Ex. A at 42:5–8.)

After all the evidence and oral argument was presented, the court held claimant to answer to the charges and stated, in part, "based on what was set forth in the cell phones, and cash, and the baggies being in the kitchen with the scale – count 2, 11366, [claimant] maintained a place for sale." (Opp., Ex. A at 47:21–24.)

3. Legal Principles

Pursuant to Health and Safety Code section 11470, subdivision (f), the following are subject to forfeiture: "All moneys ... furnished or intended to be furnished by any person in exchange for a controlled substance, all proceeds traceable to such an exchange, and all moneys ... used or intended to be used to facilitate any violation of Section ... 11378 of this code, insofar as the offense involves manufacture, sale, possession for sale, offer for sale, or offer to manufacture, or conspiracy to commit at least one of those offenses" (Health & Saf. Code, § 11470, subd. (f).)

With respect to such property "for which forfeiture is sought and as to which forfeiture is contested, the state or local governmental entity shall have the burden of proving beyond a reasonable doubt that the property for which forfeiture is sought was used, or intended to be used, to facilitate a violation of one of the offenses enumerated in subdivision (f) or (g) of Section 11470." (Health & Saf. Code, § 11488.4, subd. (i)(1).) "In the case of property described in [Health and Safety Code section 11488.4, subdivision (i),] paragraphs (1) and (2), where forfeiture is contested, a judgment of

forfeiture requires as a condition precedent thereto, that a defendant be convicted in an underlying or related criminal action of an offense specified in subdivision (f) or (g) of Section 11470 which offense occurred within five years of the seizure of the property subject to forfeiture or within five years of the notification of intention to seek forfeiture. If the defendant is found guilty of the underlying or related criminal offense, the issue of forfeiture shall be tried before the same jury, if the trial was by jury, or tried before the same court, if trial was by court, unless waived by all parties. The issue of forfeiture shall be bifurcated from the criminal trial and tried after conviction unless waived by all the parties.” (Health & Saf. Code, § 11488.4, subd. (i)(3).)

As it relates to claimant’s motion for return of property, Health and Safety Code section 11488.4, subdivision (h)(1) provides: “If there is an underlying or related criminal action, a defendant may move for the return of the property on the grounds that there is not probable cause to believe that the property is forfeitable pursuant to subdivisions (a) to (g), inclusive of Section 11470 and is not automatically made forfeitable or subject to court order of forfeiture or destruction by another provision of this chapter. The motion may be made prior to, during, or subsequent to the preliminary examination. If made subsequent to the preliminary examination, the Attorney General or district attorney may submit the record of the preliminary hearing as evidence that probable cause exists to believe that the underlying or related criminal violations have occurred.” (Health & Saf. Code, § 11488.4, subd. (h)(1).)

4. Discussion

Based on the preliminary hearing transcript, the court finds that claimant has failed to meet his burden of demonstrating there is not probable cause to believe that the seized property, \$8,600.00 cash, is forfeitable under Health and Safety Code section 11470, subdivision (f). The evidence shows that officers found large quantities of methamphetamine in claimant’s apartment, as well as baggies and a scale. Indeed, there is probable cause to believe that the seized cash was furnished, or intended to be

furnished, in exchange for methamphetamine, or used or intended to be used to facilitate a violation of Health and Safety Code section 11378, possession of a controlled substance for sale.

Claimant argues that his work paystubs show that the seized cash was obtained from his lawful employment. While that is a valid argument to raise, when considering the totality of the circumstances – including the large quantity of methamphetamine, the baggies, the scale, as well as the dates and amounts listed on the paystubs – it does not negate the fact that there is probable cause to believe that the cash was actually connected to the sale of methamphetamine. Therefore, claimant’s motion for return of property is denied.

The People’s petition for forfeiture shall trail the trial in the related criminal action, *People v. Miller*.

TENTATIVE RULING # 6: CLAIMANT’S MOTION FOR RETURN OF PROPERTY IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

THE PETITION FOR FORFEITURE SHALL TRAIL THE TRIAL IN THE RELATED CRIMINAL ACTION, *PEOPLE V. MILLER* (EL DORADO SUPER. CT., CASE NO. 25CR1785).